

26PDUD01465 26PDUD01465

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-24

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Case Number: 26PDUD01465 Hearing Date: August 24, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

AGBSC, LLC

;

Plaintiff,

vs.

Matthew Gavin

, et al.,

Defendants.

Case No.:

26PDUD01465

Hearing Date:

August 24, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Demurrer
to Complaint

MOVING PARTY: Defendants Matthew Gavin and Mangia
Apizza SC, LLC

RESPONDING
PARTY: Plaintiff AGBSC, LLC

Demurrer to
Complaint

The court considered the moving and
opposition papers filed in connection with this demurrer.

DISCUSSION

Defendants
Matthew Gavin and Mangia Apizza SC, LLC ("Defendants") demur to the Complaint—Unlawful
Detainer filed by plaintiff AGBSC, LLC ("Plaintiff").

The court
sustains the demurrer because the Complaint does not allege proper service of a
three-day notice to pay rent or quit as a prerequisite to maintaining an action
for unlawful detainer. (Code Civ. Proc., § 430.10, subd. (e).)

A tenant is
guilty of unlawful detainer "[w]hen the tenant continues in possession . . .
after default in the payment of rent . . . and three days' notice, excluding
Saturdays and Sundays and other judicial holidays, in writing, requiring its
payment, stating the amount that is due, the name, telephone number, and
address of the person to whom the rent payment shall be made, and, if payment

may be made personally, the usual days and hours that person will be available to receive the payment . . . or possession of the property, shall have been served upon the tenant" (Code Civ. Proc., § 1161, subd. 2.) Valid service of a proper three-day notice is an element of a claim for unlawful detainer. (Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1425.) A lessor must strictly comply with the statutory notice requirements. (Liebovich v. Shahrokhkhany (1997) 56 Cal.App.4th 511, 513.)

A three-day notice

may ordinarily be served on a commercial tenant by personal service. (Code Civ. Proc., § 1162, subd. (b)(1).) If the tenant is absent from the property, the notice may be served by substituted service by leaving a copy "with some person of suitable age and discretion at the property, and sending a copy through the mail addressed to the tenant at the address where the property is situated." (Code Civ. Proc., § 1162, subd. (b)(2).) If, at the time service is attempted, "a person of suitable age or discretion is not found at the rental property through the exercise of reasonable diligence," then the notice may be served "by affixing a copy in a conspicuous place on the property, and also sending a copy through the mail addressed to the tenant at the address where the property is situated." (Code Civ. Proc., § 1162, subd. (b)(3).)

The court finds

that the Declaration of Service attached to the Complaint does not demonstrate the exercise of reasonable diligence which would justify service by posting as described in the declaration. (Complaint Ex. 3 [PDF Page 10].) Nothing in the Complaint addresses any efforts which were undertaken to serve the three-day notice on Defendants by personal or substituted service. The Complaint therefore fails to allege proper service of a three-day notice to pay rent or quit.

The burden is on

the plaintiff "to articulate how it could amend its pleading to render it sufficient." (Palm

Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.) To satisfy

that burden, a plaintiff "must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

The court finds that Plaintiff has not

articulated the facts that could be alleged to demonstrate that the three-day notice to pay rent or quit was properly served, and therefore sustains the demurrer

without leave to amend.

ORDER

The court

SUSTAINS the demurrer brought by defendants Matthew Gavin and Mangia Apizza SC, LLC to the Complaint filed by AGBSC, LLC without leave to amend.

This action is

dismissed. All future hearings in this action are advanced to this date and vacated.

The court orders defendants

Matthew Gavin and Mangia Apizza SC, LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 24, 2026

Robert B. Broadbelt III

Judge of the Superior Court